

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

April 7, 2026

ENGROSSED HOUSE
BILL NO. 3695

By: Gise of the House

and

Hamilton of the Senate

An Act relating to motor vehicles; amending 47 O.S. 2021, Section 11-904, as amended by Section 65, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-904), which relates to personal injury accidents; modifying scope of certain defined term; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 11-904, as amended by Section 65, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-904), is amended to read as follows:

Section 11-904. A. Any person who is involved in a personal injury accident while driving or operating a motor vehicle within this state and who is in violation of the provisions of subsection A of Section 11-902 of this title may be charged with a violation of the provisions of this subsection as follows:

1. Any person who is convicted of a violation of the provisions of this subsection shall be deemed guilty of a misdemeanor for the first offense and shall be punished by imprisonment in the county

1 jail for not less than ninety (90) days nor more than one (1) year,
2 and a fine of not more than Two Thousand Five Hundred Dollars
3 (\$2,500.00); and

4 2. Any person who is convicted of a violation of the provisions
5 of this subsection after having been previously convicted of a
6 violation of this subsection or of Section 11-902 of this title
7 shall be deemed guilty of a Class B5 felony offense and shall be
8 punished by imprisonment in the custody of the Department of
9 Corrections for not less than one (1) year and not more than five
10 (5) years, and a fine of not more than Five Thousand Dollars
11 (\$5,000.00).

12 B. ~~1.~~ Any person who causes an accident resulting in great
13 bodily injury to any person other than himself or herself while
14 driving or operating a motor vehicle within this state and who is in
15 violation of the provisions of subsection A of Section 11-902 of
16 this title may be charged with a violation of the provisions of this
17 subsection. Any person who is convicted of a violation of the
18 provisions of this subsection shall be deemed guilty of a Class B1
19 felony offense punishable by imprisonment in the custody of the
20 Department of Corrections for not less than four (4) years and not
21 more than twenty (20) years, and a fine of not more than Five
22 Thousand Dollars (\$5,000.00).

23 ~~2.~~ C. As used in this ~~subsection~~ section, "great bodily injury"
24 means bodily injury which creates a serious compound bone fracture,

1 protracted and obvious disfigurement, protracted loss or impairment
2 of the function of a body part, organ or mental faculty, or
3 substantial risk of death ~~or which causes serious, permanent~~
4 ~~disfigurement or protracted loss or impairment of the function of~~
5 ~~any bodily member or organ.~~

6 SECTION 2. This act shall become effective November 1, 2026.

7 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
8 April 7, 2026 - DO PASS
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24